

24NNCV02464 24NNCV02464

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CE%2C08%2F07%2F2026

Source SHA-256: fa649f47e4be2909b15a2028bf8123e7c86eb3f10a73451c399fc0481d536357

Case Number: 24NNCV02464 Hearing Date: August 7, 2026 Dept: E

Case No.: 24NNCV02464

Hearing Date: 8/7/2026 – 8:30 a.m.

Trial Date: 10/12/2026

Case Name: REAGAN MONKS, a minor, by and through her Guardian ad Litem Andrea Monks v. PASADENA HOSPITAL ASSOCIATION, LTD, et al.

3 TENTATIVE RULINGS – MSJs

BACKGROUND

Plaintiff – Reagan Monks, a minor, by and through her Guardian ad Litem Andrea Monks – filed the original complaint in this action on 6/24/2024.

On 8/2/2024, Plaintiff filed the First Amended Complaint (FAC) against Defendants – (1) Pasadena Hospital Association, LTD, a California Corporation, doing business as Huntington Health; (2) Amanda Irene Jan, M.D.; (3) Jamie Powers, M.D.; (4) Nousheen Zaman, M.D.; and (5) Does 1-250 inclusive.

Plaintiff's FAC brings one cause of action for negligence.

Plaintiff alleges that on March 9, 2018, Reagan (Plaintiff, a minor) was born via c-section and was significantly

hypoglycemic for approximately five hours. (FAC, ¶ 14.)

Plaintiff alleges that despite neonatal hypoglycemia, there was little to no intervention by Defendants until Reagan was transferred to the NICU, where her glucose values stabilized, and she was discharged home four days later on March 13, 2028. (FAC, ¶15.)

Plaintiff alleges that due to the negligent care of Defendants, her health was injured and caused, and continues to cause, Reagan physical, emotional, and nervous pain and suffering, which will result in loss of earnings, permanent disability, loss of enjoyment of life, and impairment of earning capacity. (FAC, ¶ 16.)

There are three motions for summary judgment (MSJ) on calendar for 8/7/2026.

Motion 1 [Res. I.D. # 8636] is Defendant, Nousheen Zaman, M.D.'s, motion for summary judgment.

Motion 2 [Res. I.D. # 4824] is Defendant, Amanda Irene Jan, M.D.'s, motion for summary judgment.

Motion 3 [Res. I.D. # 1267] is Defendant, Jamie Powers, M.D.'s, motion for summary judgment.

PAPERS SUBMITTED

Moving Papers Motion 1: Notice/Motion; Separate Statement; Proposed Order; Notice of Lodging; Declaration of Philippe S. Friedlich, M.D.; Proposed Judgment

Opposing Papers Motion 1: Plaintiff's Notice of Non-Opposition

Reply Papers Motion 1: No Reply submitted

Moving Papers Motion 2: Notice/Motion; Separate Statement; Declaration of Philippe S. Friedlich, M.D.; Notice of Lodging; Proposed Order; Proposed Judgment

Opposing Papers Motion 2: Plaintiff's Notice of
Non-Opposition

Reply Papers Motion 2: No Reply submitted

Moving Papers Motion 3: Notice/Motion; Separate Statement;
Proposed Order; Proposed Judgment; Notice of Lodging; Declaration of Philippe
S. Friedlich

Opposing Papers Motion 3: Opposition; Separate Statement;
Declaration of Brenden Leib; Declaration of Robert Turbow, M.D.; Declaration of
Charles Niesen, M.D.; Proposed Order

Reply Papers Motion 3: Reply; Responses and Objections to
Plaintiff's Additional Material Facts and Supporting Evidence

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (CCP, § 437c(p)(2); Scalf v. D. B. Log

Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. (CCP, § 437c(p)(2).) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

“Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (CCP, §437c(p)(2).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence sufficient to establish a triable issue of material fact on the merits of the defendant's showing. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.)

TENTATIVE RULING MOTIONS 1 & 2

Motion 1 and Motion 2 Defendants, Nousheen Zaman, M.D., and Amanda Irene Jan, M.D., respectively, move for summary judgment on the basis that they acted within the standard of care and that no acts or omissions by Defendants caused or contributed to Plaintiff's injuries.

In opposition to Motions 1 and 2, Plaintiff's counsel submits notices of non-opposition indicating that Plaintiff does not oppose Motions 1 and 2.

Further, in opposition to Motions 1 and 2, Plaintiff's counsel indicates that in return, Defendants, Nousheen Zaman, M.D., and Amanda Irene Jan, M.D., waive costs and malicious prosecution.

The Court to hear
argument on Motions 1 and 2 for the reasons explained below.

The Court is inclined
to GRANT Motions 1 and 2 because Plaintiff's notices of non-opposition indicate
that Plaintiff is not opposing these motions. However, the Court is unclear
what Plaintiff's notice of non-opposition means when stating that Defendants,
Nousheen Zaman, M.D., and Amanda Irene Jan, M.D., waive costs and malicious
prosecution. No replies were submitted to these two motions; therefore, nothing
is discussed about waiving costs and malicious prosecution. Further, the Court
is not entirely clear how this issue – whether or not these two Defendants are
waiving costs and malicious prosecution – is before the Court on Defendants' Motions
1 & 2. To the Court's understanding, Motions 1 and 2 did not put these
issues before the Court.

TENTATIVE RULING MOTION 3

With respect to Motion 3, Defendant, Jamie Powers, M.D.,
moves for summary judgment, pursuant to CCP § 437c(a) and 437c(f), on the
grounds that Defendant acted within the standard of care in her treatment of
Plaintiff and on the grounds that no actions or omissions by Defendant caused
or contributed to Plaintiff's injuries.

Negligence (Medical
Malpractice)

Plaintiff's FAC
brings one cause of action for negligence.

In any medical malpractice action, the
plaintiff must establish: (1) the duty of the professional to use such skill,
prudence, and diligence as other members of his profession commonly possess and
exercise; (2) a breach of that duty; (3) a proximate causal connection between
the negligent conduct and the resulting injury; and (4) actual loss or damage
resulting from the professional's negligence. (Powell v. Kleinman (2007)
151 Cal.App.4th 112, 122 citing Hanson v. Grode (1999) 76 Cal.App.4th
601, 606.)

"A defendant or cross-defendant has met

that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (CCP, § 437c(p)(2).)

Here, Defendant (Jamie Powers, M.D.) argues that Plaintiff's second (breach of duty) and third (proximate cause) elements in the negligence action cannot be established because Defendant complied with the standard of care, i.e., did not breach her duty, and because Defendant's acts/omissions did not cause Plaintiff's injuries.

The first element, standard of care, is the key issue in a malpractice action and can only be proved by expert testimony, unless the circumstances are such that the required conduct is within the layperson's common knowledge. (San Antonio Regional Hospital v. Superior Court (2024) 102 Cal.App.5th 346, 350 quoting Lattimore v. Dickey (2015) 239 Cal.App.4th 959, 968.)

Both the standard of care and defendants' breach must normally be established by expert testimony in a medical malpractice case.¹ (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; Fn. 1 stating, "In medical malpractice cases where the conduct in question is within the common knowledge of laypersons, expert testimony may be unnecessary, such as cases where the plaintiff can invoke the doctrine of *res ipsa loquitur*.".)

Proving the third element, causation, also requires competent expert testimony. (San Antonio Regional Hospital v. Superior Court (2024) 102 Cal.App.5th 346, 350 citing Miranda v. Bomel Construction Co., Inc. (2010) 187 Cal.App.4th 1326, 1336.)

An expert is qualified to testify where she possesses special skill or experience in her field so that her testimony is likely to assist the jury in the search for the truth. (San Antonio Regional Hospital v. Superior Court (2024) 102 Cal.App.5th 346, 351 citing Lattimore v. Dickey (2015) 239 Cal.App.4th 959, 969.)

Expert testimony is properly excluded as speculative where the expert lacks expertise over the subject matter of the litigation. (San Antonio Regional Hospital v. Superior Court (2024) 102

Cal.App.5th 346, 352.)

Qualifications other than a license to

practice medicine may serve to qualify a witness to give a medical opinion. (San Antonio Regional Hospital v. Superior Court (2024) 102 Cal.App.5th 346, 352 citing People v. Caitlin (2001) 26 Cal.4th 81, 131-132.)

If the expert has disclosed sufficient

knowledge of the subject to entitle his or her opinion to go to the jury, the court abuses its discretion by excluding his or her testimony. (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467-468 citing Mann v. Cracchiolo (1985) 38 Cal.3d 18, 39, overruled on other grounds.)

Here, Defendant submits the declaration

of Philippe S. Friedlich, M.D. (Friedlich) to provide expert testimony that Defendant did not breach her duty, i.e., complied with the standard of care, and that Defendant was not the proximate cause of Plaintiff's injuries.

Friedlich is a physician licensed to

practice medicine in California, and he obtained his medical degree from University of Southern California in Los Angeles, California in 1992.

(Friedlich Decl., ¶¶ 1-3.) Friedlich completed an internship and residency in pediatrics at Children's Hospital of Los Angeles in 1995 and then completed a fellowship in neonatal and perinatal medicine at the University of Southern California – Women's and Children's hospital in 1998. (Friedlich Decl., ¶ 3.) Friedlich obtained his Master of Science in Applied Biostatistics and Epidemiology in 2004, and he has been a professor of Clinical Pediatrics and Surgery at the University of Southern California since 2012. (Id.) Friedlich is also the Co-Director of the Fetal and Neonatal Institute and the Division Chief of the Division of Neonatology at Children's Hospital of Los Angeles. (Id.) Friedlich is board-certified in Pediatrics and Neonatal Perinatal Medicine. (Id.)

Further, Friedlich is familiar with the

standard of care for physicians practicing perinatal-neonatal medicine in Southern California at all relevant times, including in 2018. (Friedlich Decl., ¶ 6.) Additionally, Friedlich states that he has personally reviewed minor Plaintiff's medical records from Huntington Memorial Hospital, minor Plaintiff's mother Andrea Monks medical records from Huntington Memorial Hospital, and relevant policies from Huntington Memorial Hospital. (Id.) Further, Friedlich

reviewed deposition testimony from Dr. Jan, Dr. Zaman, and Dr. Powers. (Id.)

In relevant part of Friedlich's declaration, Friedlich concludes that Defendant (Dr. Powers) complied with the standard of care in her care and treatment of Plaintiff, and Friedlich concludes that nothing Dr. Powers did or did not do caused or contributed to Plaintiff's injuries in any way. (Friedlich Decl., ¶¶ 29-30.)

Therefore, this Court finds that Defendant (Jamie Powers, M.D.) meets her initial burden in showing that Plaintiff's negligence claim has no merit because the expert testimony by Friedlich demonstrates that Plaintiff's second (breach of duty) and third (proximate cause) elements in the negligence action cannot be established because Defendant complied with the standard of care, i.e., did not breach her duty, and because Defendant's acts/omissions did not cause Plaintiff's injuries. (See Friedlich Decl., ¶¶ 29-30.)

Problems with Opposition and Reply

In opposition, Plaintiff argues that by submitting the expert declarations of Robert Turbow, M.D., and Charles Niesen, M.D., she successfully opposes Defendant's motion by demonstrating a dispute of material fact on the issues of breach of the standard of care and causation.

Dr. Turbow explains that he is a physician licensed to practice medicine in California, and that he has current board certification in Pediatrics and in Neonatal-Perinatal Medicine. (Turbow Decl., ¶ 2.) Turbow has practiced as an attending neonatologist for over 30 years, including clinical work at children's hospitals, regional medical centers and community hospitals. (Id.) Further, Turbow currently works as an Attending Neonatologist at Marian Regional Medical Center, and he provides neonatology coverage for French Hospital Medical Center. (Id.)

Turbow further explains that he is familiar with the standard of care applicable to physicians practicing neonatal medicine and newborn care in March 2018, including the evaluation and treatment of neonatal hypoglycemia in term infants in a well-baby nursery, the policies for the use of oral glucose gel, the indications for physician notification, escalation of care, transfer to a NICU, and intravenous dextrose therapy. (Turbow Decl., ¶ 6.)

Turbow additionally explains that he reviewed materials in this matter, including records from Huntington Memorial Hospital concerning Reagan Monks's birth and newborn hospitalization, the hospital's hypoglycemia policy, deposition transcripts of Dr. Jamie Powers, Dr. Amanda Jan, Dr. Nousheen Zaman, Nurse My Troung, and Reagan's parents, Tom and Andrea Monks. (Turbow Decl., ¶ 7.)

Further, Turbow explains that he reviewed the declaration of Philippe S. Friedlich, M.D. submitted in support of defendants' Dr. Powers, Jan, and Zaman's motions for summary judgment, and the declaration of Anne Taylor, RNC-OB, submitted in support of Defendant Pasadena Hospital Association, Ltd. dba Huntington Health's motion for summary judgment. (Turbow Decl., ¶ 8.)

Plaintiff also submits the declaration of Charles Niesen, M.D., Reagan's own treating pediatric neurologist, to provide expert testimony.

Niesen is a physician licensed to practice medicine in the State of California, and he is a neurologist and child neurologist. (Niesen Decl., ¶ 1.) Niesen explains that he became board certified by the American Board of Psychiatry and Neurology in Child Neurology in 2000 and recertified in Child Neurology in 2013. (Niesen Decl., ¶ 3.) Niesen served from 1994 to 1999 as Assistant Professor of Neurology and Pediatrics at Children's Hospital Los Angeles and the USC School of Medicine. (Niesen Decl., ¶ 4.) From 1999 to 2006, Niesen served as Associate Director and Assistant Professor of Pediatrics in the Division of Pediatric Neurology at Cedars-Sinai Medical Center and the UCLA Geffen School of Medicine. (Id.) From 2007 to 2009, Niesen served as Acting Director and Associate Professor of Pediatrics in the Division of Pediatric Neurology at Cedars-Sinai Medical Center and the UCLA Geffen School of Medicine. (Id.)

Niesen explains that he has experience evaluating, diagnosing, and treating children with cerebral palsy, spastic diplegia, motor delay, gait abnormalities, abnormal tone, tight heel cords, toe walking, seizures, and brain injury. (Niesen Decl., ¶ 5.) Further, Niesen has experience treating and evaluating children whose neurologic injuries were caused by hypoglycemia, including neonatal hypoglycemia. (Id.)

Further, Niesen explains that he has reviewed materials in this matter, including Huntington Memorial Hospital records concerning Reagan's birth and newborn hospitalization, records from my office, brain MRI studies and reports made available to me, deposition testimony, and the declaration of Philippe S. Friedlich, M.D. submitted in support of defendants' motions for summary judgment. (Niesen Decl., ¶ 6.)

Issue 1

For the reasons explained below, the Court will hear argument at the hearing.

The Court notes that the instant issue – Issue 1 – was not brought up by Defendant's reply, i.e., the Court noticed it on its own when reading Plaintiff's opposition.

In opposition, Plaintiff argues that she demonstrates a dispute of material fact on the issue of breach of the standard of care by submitting the declaration of Robert Turbow M.D.

Based on paragraph 16 of the Turbow Declaration, the Court understands how Plaintiff demonstrates a dispute of material fact as to breach of the standard of care because Turbow opines that Dr. Powers breached the applicable standard of care. (See Turbow Decl., ¶ 16.)

In relevant part of the Turbow Declaration:

If the parents' sworn testimony is accurate that Reagan had symptomatic hypoglycemia during much of the approximately eight hour period prior to NICU admission and that they personally communicated their concerns to the RN's and to Dr. Powers, then Dr. Powers breached the applicable standard of care by failing to timely recognize and respond to Reagan's symptomatic and recurrent neonatal hypoglycemia, failing to ensure adequate physician-directed monitoring and escalation after repeated low glucose values, failing to ensure immediate response or effective coverage for the subsequent critical 14 mg/dl glucose value, and allowing continued delay when NICU transfer and/or IV dextrose were required.

(Turbow Decl., ¶ 16.)

Further in opposition, Plaintiff argues that she demonstrates a dispute of material fact on the issue of causation by submitting the declaration of Charles Niesen, M.D.

The problem the Court has with the opposition though is that it is not entirely sure what evidence Plaintiff is relying on to demonstrate a dispute of material fact on the issue of causation.

In relevant part of the Niesen Declaration, Niesen states:

It is my opinion that earlier correction and stabilization of glucose by both Dr. Powers and the Huntington Hospital nursing staff would have reduced the duration and severity of hypoglycemia and, to a reasonable medical probability, would have prevented or significantly reduced Reagan's injuries.

(Niesen Decl., ¶ 18.)

Problematic with paragraph 18 in the Niesen Declaration, and problematic with the entire Niesen Declaration, is that the Court does not see where Niesen concludes, in any clear or explicit manner, that Defendant's (Dr. Powers) actions/inactions were the proximate cause of Plaintiff's injuries.

Niesen explains that earlier correction and stabilization of glucose by Dr. Powers would have reduced the duration and severity of hypoglycemia and would have prevented or significantly reduced Reagan's injuries. (See Niesen Decl., ¶ 18.)

Is Niesen stating that Dr. Powers' actions/inactions were the proximate cause of Plaintiff's injuries? It is not clear to this Court, because Niesen does not explicitly conclude that Dr. Powers was the proximate cause of Plaintiff's injuries anywhere in his declaration.

The Court highlights this issue because Defendant's reply does not bring this issue up in reply.

Or to phrase it differently, since Defendant's reply doesn't address this issue, the Court will hear argument because Defendant's reply seems to assume that the Dr. Turbow and Dr. Niesen declarations do in fact demonstrate a dispute of material fact as to breach and causation.

Issue 2

Defendant's reply argues that Plaintiff's opposition fails to meet Plaintiff's burden in demonstrating a dispute of material fact by attacking the competency and admissibility of the Turbow and Niesen declarations that were submitted in opposition.

Defendant's reply argues that both Plaintiff's experts rely solely on minor Plaintiff's father's deposition testimony that the father observed jittery movements by Plaintiff and advised nurses and Dr. Powers.

Defendant's reply argues that Plaintiff's experts cannot rely on the parents' testimony because the parents' testimony is speculative lay witness testimony.

Here, the Court is inclined to find Defendant's argument unavailing.

The Court fails to see why Plaintiff's experts cant rely/take into consideration that Plaintiff's father allegedly told Dr. Powers that Plaintiff was jittery.

Further, although Defendant argues that Turbow's statement of, "If the parents' sworn testimony is accurate," is speculative and holding little evidentiary value, the Court fails to see why Plaintiff's experts cannot use this in making their opinion.

How is Plaintiff's experts' reliance on alleged statements by Plaintiff's parents any different than Plaintiff's experts relying on medical records or any other evidence they took into consideration when making their opinion? How would this not be for the trier of fact to determine the credibility of Plaintiff's experts' opinions?

As explained in section 801 of the
Evidence Code:

If a witness is testifying as an expert, his testimony in
the form of an opinion is limited to such an opinion as is:

(a) Related to a subject that is sufficiently beyond
common experience that the opinion of an expert would assist the trier of fact;
and

(b) Based on matter (including his special knowledge,
skill, experience, training, and education) perceived by or
personally known to the witness or made known to him at or before the
hearing, whether or not admissible, that is of a type that reasonably
may be relied upon by an expert in forming an opinion upon the subject to which
his testimony relates, unless an expert is precluded by law from using such
matter as a basis for his opinion.

(Evid. Code, § 801(a)-(b); emph.
added.)

Additionally, Defendant's reply argues
that Plaintiff's experts' testimony is conclusory, but the Court does not find
this argument availing.

Further, in reply Defendant argues that
Dr. Niesen is a pediatric neurologist and not a neonatologist. Defendant thus
concludes that Dr. Niesen is not qualified to offer opinions regarding Dr.
Powers' compliance with the standard of care.

The Court is inclined to find
Defendant's argument – that Dr. Niesen is unqualified since he is a pediatric
neurologist and not a neonatologist – unavailing.

First, the Court is inclined to find
Defendant's argument unavailing because Defendant's reply does not cite to any
legal authority as to what the standard is in determining if a pediatric
neurologist versus a neonatologist is qualified.

Second, Defendant argues that Niesen is

not qualified to opine on the standard of care because he is a pediatric neurologist; however, Niesen does not appear to be opining on the standard of care.

Isn't Niesen opining on causation, and not the standard of care?

In any event, although Defendant's reply argues that Niesen is not qualified because he is a pediatric neurologist, and not a neonatologist, Defendant does not come forward with any legal authority supporting the conclusion that Niesen is not qualified to offer opinions.

Further, the Court **OVERRULES** Defendant's objections submitted in reply that object to Plaintiff's additional material facts/supporting evidence.

Summary Conclusion

The Court is inclined to GRANT Motions 1 and 2 because Plaintiff's notices of non-opposition indicate that Plaintiff is not opposing these motions. However, the Court is unclear what Plaintiff's notice of non-opposition means when stating that Defendants, Nousheen Zaman, M.D., and Amanda Irene Jan, M.D., waive costs and malicious prosecution. No replies were submitted to these two motions; therefore, nothing is discussed about waiving costs and malicious prosecution. Further, the Court is not entirely clear how this issue – whether or not these two Defendants are waiving costs and malicious prosecution – is before the Court on Defendants' Motions 1 & 2. To the Court's understanding, Motions 1 and 2 did not put these issues before the Court.

The Court to hear argument.

With respect to Motion 3, Defendant (Jamie Powers, M.D.) meets her initial burden in showing that Plaintiff's negligence claim has no merit because the expert testimony by Dr. Friedlich demonstrates that Plaintiff's second (breach of duty) and third (proximate cause) elements in the negligence action cannot be established because Defendant complied with the standard of care, i.e., did not breach her

duty, and because Defendant's acts/omissions did not cause Plaintiff's injuries. (See Friedrich Decl., ¶¶ 29-30.)

At the hearing, the Court will hear from the parties as to whether or not Plaintiff's opposition successfully demonstrates a dispute of material fact as to breach and causation. As previously explained in its section titled "Issue 1," the Court views ¶ 16 of the Turbow Declaration successfully demonstrating a dispute of material fact on the issue of breach. However, the Court is not entirely sure if/how the Niesen Declaration demonstrates a dispute of material fact on the issue of causation. Paragraph 18 of the Niesen Declaration appears to be an attempt to demonstrate a dispute of material fact on the issue of causation; however, the Court is not entirely clear about the issue because the Niesen Declaration does not seem to explicitly state that Dr. Powers' actions/inactions caused Plaintiff's injuries.

In the Court's section titled "Issue 2," the Court explains how Defendant's reply argues that Plaintiffs' experts' declarations are conclusory and speculative and that Niesen is not qualified since he is a pediatric neurologist and not a neonatologist.

With respect to the Court's section titled "Issue 2," the Court explains how Defendant's arguments in reply are unavailing and how Defendant's objections in reply are overruled.

Therefore, if Plaintiff successfully addresses Issue 1, the Court is inclined to DENY Motion 3.

If Plaintiff does not successfully address Issue 1, the Court is inclined to GRANT Motion 3.